Institutional characteristics

The responsiveness and the effectiveness of a legislature to conflict reveals its institutional characteristics and its power. While the conventional functions of legislatures (representation, lawmaking, and oversight) are the same, each legislature is unique in a number of ways based on its historical legacy and political culture. As for Myanmar, it is institutionally different in two ways: (i) the presence of the military representatives and their veto power to any constitutional amendments; and, (ii) the inheritance from the past two post-independence legislatures.

The main difference between the current and previous parliaments of Myanmar (post-independence parliament of 1948–62 and one-party socialist era of 1974–88) is the presence of unelected military representation and the military veto to the constitutional amendment process. With memories of highly partisan and fierce power struggles between political factions in the post-independence parliamentary era that became a pretext for coups in Myanmar, everyone was careful not to offend each other personally or politically and non-partisan co-operation was encouraged from the beginning.[25] Therefore, I argue that the institutional design of Myanmar's legislature seeks to avoid chaos and disorder in the legislature, as witnessed during the post-independence parliament, by giving absolute power to the speakers and addressing frequent coup d'états by giving the role of constitutional defender to the military inside the legislature.

In addition, the current legislature has links with its two predecessors. When the constitution was discussed by the National Convention in the 1990s and 2000s, the government sought no technical cooperation from outside, nor was any offered. Learning from history was most effective. Interviews with State Constitution Drafting Commission staff suggest adherence to precedent was observed in codifying the 2008 Constitution.[26] Apart from adapting legislative procedures from the post-independence parliament, the new constitution also inherited arrangements from the socialist era.[27] Because the legislature at that time practised a single party system and there was no opposition party, questions and motions were directed to the government. Following this tradition, in the new Hluttaw, questions are directed to the government rather than the ruling party. In this way, the legislature itself became the opposition to the government. Therefore, the Hluttaw from 2011 to 2015 preferred dealing with the executive rather than consulting within the legislature.